FairExit
Challenge your severance offer.



YOUR SEVERANCE REPORT

# Your offer, organized.

We read your letter and your contract, checked them against the rules, and checked the release you're being asked to sign. Use it to understand your offer and prepare. Only an attorney can tell you what applies to you.

DO-IT-YOURSELF · NOT LEGAL ADVICE · YOU'RE IN CONTROL

PREPARED FOR
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ROLE
**Senior Dispatch Coordinator · 11 yrs 7 mo**

WHERE
**Texas, United States**

DATE
**October 1, 2026**

**For information only** — not legal advice · Yours to keep and use

**General information, not legal advice.** We've done our best to make this clear and accurate, but please check the details before you act. If anything feels unclear, a professional can help.

# What's in *this report.*

Read it top to bottom, or jump to the page you need.


1 Where you stand — **pages 4–8**
Your offer checked against the rules, and what lines up.

2 Why there's no minimum — **pages 9–10**
What you're owed comes from what was promised.

3 What's in your letter and contract — **pages 11–15**
Clause by clause, with sources.

4 Questions to prepare — **pages 16–18**
Calm questions for HR, and this week's steps.

5 Your next step — **pages 19–20**
The three paths, side by side.

6 Where every number comes from — **page 21**
Every number and rule, with its official source.

7 Talking to an attorney — **page 22**
How to hand this report over, and your report ID.


**How to read the colours:** they always mean the same thing.

Green · lines up | Red · doesn't line up | Yellow · ask about it | Gray · good to know

Dark blue · your key number

US law sets no minimum severance, so this report checks **what your own documents promise** and **the rules that protect you when you sign a release**. It doesn't promise an amount or tell you what to do.

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# The important stuff — *please read.*

Straight talk about what this pack is, what it isn't, and where the responsibility sits.

## 1 · This is a do-it-yourself report

This is designed for you to use **on your own**. It organizes your offer and prepares questions — it is **not** advice a attorney would give you after reviewing your full situation, and a attorney may see things very differently. Anything you choose to send or say, you're doing **on your own initiative**.

## 2 · Information, not legal advice

This pack gives you information to help you prepare. It does **not** make FairExit your attorney and does not create a attorney–client relationship. Nothing here is legal advice.

## 3 · We use AI — mistakes can happen

The explanations, notes, and draft questions are produced by **software and AI** from general rules and the details you gave us. **AI can be wrong, details can be misread, and laws change**. It is up to you to read everything carefully and confirm every fact is correct before you rely on it.

## 4 · No guarantee — and the decisions are yours

Any general information here can be wrong, and outcomes depend on your paperwork and your situation. **FairExit accepts no responsibility for what you send, say, or decide based on this report** — those choices are entirely yours. Deadlines to act can be short; confirm them with a attorney promptly.

## 5 · Only a attorney can give you the exact answer

We provide clarity in an organized way. **Only a licensed employment attorney** can confirm what you're truly owed, review your real contract, and advise you. If anything feels urgent or serious — especially before you sign anything — speak to a attorney. The first call is often free.

## 6 · Once a attorney takes your case, follow them

Everything here is **general and organizational**. If you retain a attorney, their advice **supersedes** anything in this report — follow your attorney, not this document. **Do not rely on this report once you're working with a attorney**.

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# 1

# Where you stand

Your offer, checked against the rules. What they offered, what the rules say, and what lines up and what doesn't. If you only read one section, read this one.

IN THIS SECTION

Your offer at a glance

Things they don't always tell you

Did they do it right?

Your release check

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# Your offer, *at a glance.*

The short version before the detail.

Brazos Valley offered you 11 weeks (**$16,288**) plus **$1,200** for health coverage if you sign a release. That matches their severance policy. But you're 61 and part of a group layoff, so federal rules give you 45 days and a list of who was selected: you got 21 days and no list. Texas law also says your final pay is due by October 15, and your signed agreement promises your unused PTO (about **$4,146**). You don't have to sign in 21 days.

| | |
|---|---|
| Employer | **Brazos Valley Freight Systems** |
| Service | **11 yrs 7 mo** |
| Age | **28** |
| Your pay | **$77,000 / year** |
| They offered | **$16,288** |
| Decide by | **Not stated** |

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# Things they don't always *tell you.*

Here's what the official rules say, so you can decide on your timeline, not theirs. Every point links to a government source.

| WHAT PEOPLE OFTEN THINK | WHAT THE OFFICIAL RULES SAY |
|---|---|
| **"I have 21 days to decide."** | In a group layoff, someone 40 or older must get at least 45 days to consider a release of age claims, and 7 days to revoke after.<br>Source: **eeoc.gov · Q&A: Understanding waivers of discrimination claims in em…** |
| **"They don't have to tell me who else was laid off."** | In a group layoff, the employer must give the job titles and ages of those selected and not selected.<br>Source: **eeoc.gov · Q&A: Understanding waivers of discrimination claims in em…** |
| **"My final paycheck comes on the next payday."** | In Texas, an employee who is discharged must be paid in full by the sixth day after discharge.<br>Source: **statutes.capitol.texas.gov · Tex. Lab. Code §61.014** |
| **"The handbook says PTO isn't paid, so that's it."** | In Texas, vacation pay owed under a written agreement counts as wages. Your signed agreement promises PTO payout.<br>Source: **statutes.capitol.texas.gov · Tex. Lab. Code §61.001(7)(B)** |
| **"If I challenge the release, I have to pay it back."** | Under the age discrimination law, you're not required to return severance pay to challenge the waiver.<br>Source: **eeoc.gov · Q&A: Understanding waivers of discrimination claims in em…** |

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# Did they do it *right?*

Your letter, your contract and the rules, side by side. Green = it lines up. Red = it doesn't. Yellow = worth asking about.

1 LINE UP | 4 DON'T | 1 TO ASK ABOUT

| WHAT WE CHECKED | YOUR LETTER SAYS | YOUR CONTRACT SAYS | THE RULES SAY | DOES IT LINE UP? |
|---|---|---|---|---|
| **Severance amount** | 11 weeks: $16,288 | Policy: 1 week per year, min 4 | What the policy promises | **Lines up** 11 full years × 1 week. It matches. |
| **Time to consider** | 21 days | Nothing | 45 days in a group layoff (age 40+) | **Doesn't line up** Too short for a valid age release. |
| **List of who was selected** | Withheld as confidential | Nothing | Required in a group layoff | **Doesn't line up** Missing. |
| **Final pay date** | October 24 | Nothing | By the 6th day after discharge: October 15 | **Doesn't line up** Nine days late. |
| **Unused PTO** | Not paid (handbook) | "Will be paid upon separation" (s.3) | Vacation pay owed under a written agreement is wages | **Doesn't line up** About $4,146 is missing. |
| **Layoff notice (WARN)** | Released in the agreement | Nothing | Applies at 50+ laid off at one site | **Good to know** 38 at your site: likely doesn't apply. |
| **Non-compete** | 24 months, 250 miles | Any capacity in freight or logistics | Must be reasonable; a court can narrow it | **Ask about it** Very broad. Ask an attorney. |

Checked against Texas's rules and court decisions. Sources are on the Sources page.

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# Your release *check.*

US law sets no minimum severance, so the report checks the release you're being asked to sign against the rules that protect you.

YOUR KEY NUMBER

## $16,288

What your letter offers for signing the release. US law sets no minimum, so this comes from your employer's policy or agreement, not a legal floor.

**Time to review**
The letter mentions a review period but gives no number of days.

**7 days to revoke after signing**
Included.

**Advised to consult an attorney**
"We encourage you to consult an attorney."

**Refers to the age discrimination law (ADEA)**
Named in section 3.

**Something beyond what you're owed**
The $1,200 and the severance are offered for the release.

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# 2

# Why there's no minimum

In the US, no law sets a minimum severance. Yours comes from your employer's policy, and the rules protect you when you sign a release.

IN THIS SECTION

Where your severance comes from

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# Where your severance *comes from.*

Three places, and which one applies to you.

## 1 · A written policy or agreement

If your employer has a written severance policy, plan or agreement, it decides what you're owed. Your offer: **$16,288**. Section 3 shows what your documents say.

## 2 · A law for certain layoffs

The federal WARN Act requires 60 days' notice, or pay instead, before a plant closing or mass layoff at employers with 100 or more workers. It only applies to larger layoffs; some states add their own rules.

## 3 · Money owed no matter what

Your final pay is owed whether or not you sign. In some states, unused vacation or PTO counts as wages too. Texas's rules are on the Sources page.

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# 3

# What's in your letter and contract

Clause by clause: what your documents say, what the rules say, and what it could mean for you. Each point shows where it comes from.

IN THIS SECTION

45 days and a list are required

Your final pay is due by October 15

Your unused PTO is owed

The non-compete

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# The terms to understand and the *questions to ask.*

For each: what your documents say, what the rules say, and what it means.

DOESN'T LINE UP

## 1. 45 days and a list are required

YOUR DOCUMENTS SAY

"You have twenty-one (21) days to consider this Agreement …" "The Company has not included a list of employees selected and not selected … because this information is confidential."

WHAT THE RULES SAY

In a group layoff, a valid release of age claims needs at least 45 days and the job titles and ages of everyone eligible or selected and not selected.

**Why it matters:** Missing.

→ **Ask for 45 days and the required list in writing.**

Where this comes from: **eeoc.gov · Q&A: Understanding waivers of discrimination claims in em…**

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DOESN'T LINE UP

## 2. Your final pay is due by October 15

YOUR DOCUMENTS SAY

"Your final paycheck … will be paid on the next regular payday, October 24, 2026."

WHAT THE RULES SAY

"An employer shall pay in full an employee who is discharged from employment not later than the sixth day after the date the employee is discharged."

**Why it matters:** Nine days late.

→ **Ask for your final pay by October 15.**

Where this comes from: **statutes.capitol.texas.gov · Tex. Lab. Code §61.014**

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DOESN'T LINE UP

## 3. Your unused PTO is owed

YOUR DOCUMENTS SAY

Letter: "Accrued PTO is not paid out at separation under Company policy." Your signed agreement s.3: "Accrued, unused PTO will be paid upon separation."

WHAT THE RULES SAY

"Wages" includes "vacation pay … owed to an employee under a written agreement with the employer".

**Why it matters:** About $4,146 is missing.

→ **Ask for your PTO to be paid with your final pay.**

Where this comes from: **statutes.capitol.texas.gov · Tex. Lab. Code §61.001(7)(B)**

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ASK ABOUT IT

## 4. The non-compete

YOUR DOCUMENTS SAY

24 months, within 250 miles of Houston, "in any capacity" in freight brokerage or logistics.

WHAT THE RULES SAY

Texas enforces a non-compete only to the extent its time, area and scope are reasonable; if they aren't, a court reforms it to what is reasonable.

**Why it matters:** Very broad. Ask an attorney.

→ **Ask an attorney before turning down work.**

Where this comes from: **statutes.capitol.texas.gov · Tex. Bus. & Com. Code §15.50–15.51**

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# 4

# Questions to prepare

Calm questions you can send to HR, and practical steps for this week. You decide what to use and when.

IN THIS SECTION

Questions you might choose to ask

Take your time, and keep it simple

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# Questions you might *choose to ask.*

Neutral questions you might choose to send. You decide what to send. This is not a demand letter or legal advice.

To: **your HR contact (Charlene Dupree)** · Subject: **A few questions about my separation offer**

Hi Charlene,

Thank you for the letter. Before I decide, I have a few questions.

Because I'm over 40 and this is part of a group reduction, I understand I should have 45 days to consider the agreement and a list of the job titles and ages of those selected and not selected. Could you provide that?

Could you confirm my final pay will be paid by October 15, and that my 112 hours of unused PTO will be included, as section 3 of my agreement provides?

Thank you,
Raymond

**Why this works:** it asks clear questions instead of making claims, and asks for time to understand the offer.

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# Take your time — *and keep it simple.*

Two things that help: not rushing, and keeping your questions clear.

## You usually don't have to decide on the spot

Your documents do not give a deadline to sign by. Asking HR in writing whether there is a response date is a normal first step before making any decision.

## This week — the practical stuff

- **Write down every date:** last day Oct 9, final pay due Oct 15.
- **File for unemployment** with the Texas Workforce Commission.
- **Gather documents:** 2015 agreement, handbook section 6.4, PTO balance, the layoff memo.
- **Check your final pay includes** PTO.
- **Keep this report** to hand to an attorney if you choose.

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5

# Your next step

The three paths side by side, where every number in this report comes from, and how to hand it to a attorney if you want one.

IN THIS SECTION

You don't have to sign today

Where every number comes from

Talking to a attorney

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# You don't have to *sign today.*

Here's how the three paths compare.

OPTION 1

## Sign as-is

Accept the offer and move on.

**You get $16,288. It gives up the contract question.**

OPTION 2

## Ask your questions

Use Section 4 to raise it yourself.

**You run it yourself, using Section 4.**

OPTION 3

## Talk to a attorney

They can tell you what applies to you.

**First call often free. The contract question needs a attorney to read it.**

**Honest note:** this report helps you ask the right questions. The contract question in Section 3 is one a attorney needs to read your contract to answer.

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# Where every number *comes from.*

Texas rules from official statute text and government guides (checked October 1, 2026).

| IN YOUR REPORT | HOW WE GOT IT | SOURCE |
|---|---|---|
| **Their offer $16,288** | What your letter says | Your separation agreement |
| **Time to consider** | 45 days in a group layoff (age 40+) | U.S. Equal Employment Opportunity Commission · Q&A: Understanding waivers of discrimination claims in employee severance agreements **www.eeoc.gov/laws/guidance/qa-understanding-waivers-discrimination-claims-employee-severance-agreements** |
| **List of who was selected** | Required in a group layoff | U.S. Equal Employment Opportunity Commission · Q&A: Understanding waivers of discrimination claims in employee severance agreements **www.eeoc.gov/laws/guidance/qa-understanding-waivers-discrimination-claims-employee-severance-agreements** |
| **Final pay date** | By the 6th day after discharge: October 15 | Texas Labor Code · Tex. Lab. Code §61.014 **statutes.capitol.texas.gov/Docs/LA/htm/LA.61.htm** |
| **Unused PTO** | Vacation pay owed under a written agreement is wages | Texas Labor Code · Tex. Lab. Code §61.001(7)(B) **statutes.capitol.texas.gov/Docs/LA/htm/LA.61.htm** |
| **Non-compete** | Must be reasonable; a court can narrow it | Texas Business & Commerce Code · Tex. Bus. & Com. Code §15.50–15.51 **statutes.capitol.texas.gov/Docs/BC/htm/BC.15.htm** |

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# One step, and a attorney *takes it from here.*

If they push back, go quiet, or it feels like too much, you can hand this report to a attorney.

## Show them this page.

Your report ID connects this report to FairExit, so they can see what you've already done. Connecting is free; you choose whether to go further.

Report ID **FX-TEST-TX-0001**

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Built on the details you confirmed on October 1, 2026.
Rules as of October 1, 2026.
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